



POLICE DEPARTMENT

May 21, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Sonya Glover
Tax Registry 900057
Fleet Services Division
Disciplinary Case No. 85184/09

The above-named member of the Department appeared before me on
January 8, 2010, February 3, 2010 and February 17, 2010, charged with the following:

1. Said Police Officer Sonya Glover, while assigned to the 112 Precinct, while off-duty, at approximately 0330 hours, on or about April 12, 2008, in the vicinity of [REDACTED], Queens County, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer was involved in a verbal and physical dispute with Ms. [REDACTED]. *(As amended)*

P.G. 203-10 Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED
CONDUCT – GENERAL REGULATIONS

2. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

3. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

The Department was represented by Michelle Alleyne, Esq., Department Advocate's Office, and the Respondent was represented by Eric Sanders, Esq.

The Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty of Specification No. 1. The Department moved to Dismiss Specification Nos. 2 and 3.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Rachelle Newton, Police Officer Owen Desouza, and Police Officer Carlo Cifarelli as witnesses.

Sergeant Rachelle Newton

Sergeant Rachelle Newton, assigned to Queens North Investigations Unit, testified that she was assigned to investigate an allegation made against the Respondent that while she was off-duty at about 0330 hours on April 12, 2008, a [REDACTED], Queens, she was involved in an altercation with [REDACTED] that resulted in a 911 call and a police response to that location.

Newton recalled that she conducted a telephone interview of [REDACTED] which was followed up by a second, in person, tape-recorded interview on May 9, 2008.

During both of these interviews, [REDACTED] stated that she and the Respondent had a verbal argument during the early morning hours on April 12, 2008, regarding a phone conversation that the Respondent "had while they were preparing to leave to go out for the night." [REDACTED] did not allege at either interview that any physical altercation had taken place. Newton testified that she requested to be allowed to interview [REDACTED]'s two children, [REDACTED] ([REDACTED]) and [REDACTED] but Jackson refused to allow her to interview either of her children.

Newton learned that the Administration for Children's Services (ACS) had interviewed [REDACTED]'s two children regarding this incident. Newton contacted the ACS liaison who voluntarily provided Newton with interview reports prepared by an ACS caseworker who interviewed [REDACTED]'s two children regarding this incident. On April 13, 2008, [REDACTED], who was a 14-year-old at the time of this incident, told the caseworker that the dispute between the Respondent and [REDACTED] "did become physical and someone called the police" [Department's Exhibit (DX) 1]. At a subsequent interview on May 5, 2008, [REDACTED] told the caseworker that his mother and her partner were "fighting" and "yelling very loudly" and "that is why he called the police" (DX 2).

Newton obtained the tape-recording of the 911 call (DX 3) [An unidentified young male voice is heard telling the 911 operator: "I need emergency. My mom's friend is beating her." When the operator asks the caller, "Does she need the ambulance?" The caller replies, "No"].

On cross-examination, Newton confirmed that she never interviewed either of [REDACTED]'s children and that she did not go the apartment where the incident occurred. She confirmed that she reviewed the Domestic Incident Report (DIR) that was prepared

by Police Officer Owen Desouza who had responded to this incident, and that the DIR contained no mention that any referral to ACS was made. Newton also confirmed that she interviewed [REDACTED], the father of [REDACTED]'s children, who told her that he arrived in the hallway outside the apartment after the incident between the Respondent and [REDACTED] had already taken place. Newton confirmed that allegations that [REDACTED] had made were "unfounded" by ACS. Newton recalled that she contacted the ACS liaison via telephone. She never sent any written request to ACS.

Police Officer Owen Desouza

Police Officer Owen Desouza, who was assigned to the 110 Precinct in April, 2008, recalled that at about 0330 hours, on April 12, 2008, he and his partner, Police Officer Carlo Cifarelli, responded to a "10-52" radio transmission regarding a dispute inside apartment [REDACTED] at [REDACTED]. When they entered the lobby of the building, they met [REDACTED]n, who was crying. [REDACTED] told them that she lived upstairs in apartment [REDACTED], that her "girlfriend" was inside her apartment, and that she wanted her "girlfriend" to leave her apartment. [REDACTED] told them, "I've taken enough of her nonsense."

They went upstairs and [REDACTED] opened the door to her apartment. Inside the apartment, Desouza and Cifarelli asked the woman who [REDACTED] identified as her girlfriend to leave the apartment. The woman, who was "agitated," wanted to speak to [REDACTED] alone. The officers allowed the two women to speak in private. [REDACTED]'s girlfriend then left without having identified herself. When Desouza was asked if he had spoken to the two children who were inside the apartment, he answered, "Not really," but

that to him they “appeared shaken.” A man appeared in the hallway outside the apartment. He told the officers that he had come there to “pick up the kids.”

On cross-examination, Desouza confirmed that because this brief, non-arrest “job” took place three years ago, he had little present recall of this incident, but that he had “some” recall after he had refreshed his recollection by reading the DIR he had prepared. [Respondent’s Exhibit (RX) A][In the “Results of investigation and basis of action taken” section of this DIR is written: AT TPO C/V STATES SHE HAD A VERBAL DISPUTE WITH HER PARTNER AND JUST WANTED HER TO LEAVE. On page 2 of this DIR [REDACTED] signed a supporting deposition in which she wrote: I HAD A DISPUTE WITH MY PARTNER AND WANTED HER TO LEAVE.]

Desouza confirmed that no one inside the apartment said that there had been a physical altercation. He saw no injuries on [REDACTED] or anyone else and he saw nothing to indicate child abuse or that Jackson had been drinking. After the woman who [REDACTED] had referred to as her girlfriend left the apartment, [REDACTED] told him that the woman’s last name was Glover. Desouza further confirmed that he had only prepared the DIR to cover himself because the call was transmitted as a “10-52 dispute” and he did not want to get a note from the Precinct’s Domestic Violence Officer chastising him for not preparing a DIR regarding this call. When he was asked if the incident he had responded to appeared to him to be a serious one, he replied, “It didn’t seem serious.”

Police Officer Carlo Cifarelli

Police Officer Carlo Cifarelli, who was assigned to the 112 Precinct on April 12, 2008, testified that he and Desouza responded to a radio transmission of “dispute in

apartment” at apartment [REDACTED], [REDACTED], Queens. When they entered the lobby of the building, Cifarelli saw a woman, who he learned was [REDACTED], and another person who appeared to him to be a man not a women. [REDACTED] told the officers that she had just had a dispute inside her apartment with her girlfriend and that she wanted her girlfriend to be removed from her apartment. When they entered [REDACTED]’s apartment, Cifarelli saw a boy and a girl and an adult female. When the adult female left, [REDACTED] told the officers that the adult female’s name was Glover. [REDACTED] did not allege that there had been any physical altercation between her and Glover.

The Respondent’s Case

The Respondent called Cynthia Bell as a witness and she testified on her own behalf.

Cynthia Bell

Cynthia Bell recalled that on April 12, 2008, she went to [REDACTED], Queens, to meet the Respondent and [REDACTED] because they had planned to go to a party together. Inside the apartment, Bell, [REDACTED] and the Respondent played a word game called “dirty dozen.” The game ended when [REDACTED] “got upset” because she was “sensitive about something” that someone said during the game. Bell heard the Respondent tell [REDACTED] that she should not go the party because “you have a sick kid and you should stay home.” Bell recalled that “[REDACTED] did not want to hear that” and the Respondent and [REDACTED] began arguing.

Shortly thereafter, Bell heard [REDACTED] say that someone was speaking into apartment [REDACTED]'s intercom. [REDACTED] then asked them, "You called the police?" Everyone inside the apartment said, "No." Two male officers entered the apartment. She heard one say, "This is some gay thing." The officers told [REDACTED] that because they had had to respond to this call, [REDACTED] had to sign a DIR. Bell testified that the only physical contact that occurred between the Respondent and [REDACTED] took place while they were taking photos of each other. When the Respondent bent over to pick the camera up off of the floor, [REDACTED] had grabbed the Respondent's hand.

The Respondent

The Respondent testified that on April 12, 2008, she went to [REDACTED]'s apartment at [REDACTED], Queens. When she arrived, [REDACTED] and her two children, [REDACTED] and [REDACTED] who was ill, were inside the apartment. Bell arrived later and she, [REDACTED] and the Respondent played Scrabble. The game ended when [REDACTED] became aggravated because the Respondent was teasing her about her inability to articulate and spell words in the Scrabble game and because although [REDACTED] "can dish it out, she can't take it." There was no physical altercation between her and [REDACTED]. [REDACTED] took the Respondent's cell phone, left the apartment and went downstairs. The Respondent followed her so that she could retrieve her cell phone from her.

They were standing in the hallway by the elevator when Officers Desouza and Cifarelli entered the building and told them that they had received a call about a dispute inside apartment [REDACTED]. [REDACTED] asked her, "Did you call the police?" The Respondent answered, "Why would I call the police?" Together they all went to apartment [REDACTED]. Bell

opened the door and let them all inside. The Respondent asked [REDACTED] to hand back her cell phone. The officers spoke to [REDACTED] but the Respondent did not hear what was said. The Respondent put on her jacket and left the apartment.

As she was walking out the door, [REDACTED] asked her if he could go with her because the Respondent regularly picks him up at school. When she used the intercom to call [REDACTED] to tell her that she was talking [REDACTED] out to get something to eat, one of the officers answered and told her that she was not allowed to speak with [REDACTED]. When she brought [REDACTED] back to the building, the officers were just leaving so they walked him back to the apartment.

On cross-examination, the Respondent confirmed that when Officers Desouza and Cifarelli began to interview [REDACTED], she left the apartment without having identified herself to the officers because she was not interested in hearing what the officers and [REDACTED] were conversing about based on the officers' attitudes when they entered the apartment. The Respondent described the officers as arrogant and unprofessional and she recalled that "they were making gestures" indicating their intolerance for gays and lesbians.

The Respondent confirmed that at her official Department interview on October 14, 2008, even though she had been asked if there was anything she wished to add to her statement, she did not mention to her interviewers that Cynthia Bell had been present in the apartment with her and [REDACTED]. The Respondent asserted that she had told Newton at previous interviews that another adult had been present. The Respondent confirmed that the voice of the caller on the 911 tape recording sounded to her like [REDACTED]'s voice.

FINDINGS AND ANALYSISSpecification Nos. 2 and 3

The Department previously moved¹ to Dismiss Specification Nos. 2 and 3. Specification No. 2 originated as a Command Discipline. The Assistant Department Advocate (the Advocate) stated that at the time these Charges and Specifications were prepared, the Department believed that this Command Discipline had not yet been adjudicated. However, after these Charges had been served on the Respondent, Respondent's counsel provided the Advocate with documentation which established that the misconduct the Respondent is charged with under Specification No. 2 had been included within a Class A Command Discipline which had already been adjudicated. Therefore, it is recommended that the Department's motion to Dismiss Specification No. 2 be granted.

With regard to Specification No. 3, the Advocate stated that based on further investigation of the allegation that the Respondent had made a verbal threat during a telephone conversation, the Department had determined that it did not have sufficient evidence to meet its burden to prove this charge by a preponderance of the credible evidence. Therefore, it is also recommended that the Department's motion to Dismiss Specification No. 3 be granted.

Specification No. 1

It is charged that the Respondent wrongfully engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that she was involved in a verbal and physical dispute with [REDACTED].

¹ At a pre-trial conference held on October 29, 2009.

The Respondent acknowledged that she and [REDACTED] had a verbal argument inside [REDACTED]'s apartment during the early morning hours on April 12, 2008, but the Respondent has consistently denied that this argument escalated into a physical altercation. Since a dispute between the Respondent and [REDACTED] that involved merely a verbal argument would not constitute actionable misconduct, the question presented here is whether the Department met its burden of presenting sufficient credible evidence which proves that the Respondent engaged in a physical altercation with [REDACTED].

The Department did not present any witness who testified that [REDACTED]'s argument with the Respondent became physical. The DIR that Desouza prepared on the night of this incident states that the dispute was only verbal in nature and [REDACTED] also wrote this in the supporting deposition she signed (RX A).

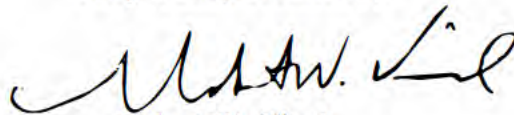
Thus, the only proof offered by the Department that the Respondent's verbal argument with [REDACTED] turned physical is the 911 tape-recording in evidence (DX 3) in which the caller states, "My mom's friend is beating her."

The Advocate asserted that the Department only offered the ACS interview reports (DX 2 and 3) into evidence for the limited purpose of establishing that the 911 caller is [REDACTED]'s son, [REDACTED]. Since the Respondent agreed that the voice on the 911 recording sounded to her like [REDACTED]'s voice, there is no need to consider these ACS reports in making a finding regarding this charge. As a result, I need not reach the issue of whether Newton's receipt of these ACS reports and the Department's request that they be admitted into evidence at this administrative proceeding constituted violations of the confidentiality provisions of Social Services Law Section 422.

The tape recording of the call to 911 that was made by [REDACTED] was offered as hearsay at this trial. I cannot concur with the Advocate's position that the unsupported hearsay claim of a 14-year-old that "My mom's friend is beating her," constitutes sufficient evidence for the Department to meet its burden of proving the Respondent guilty by a preponderance of the credible evidence. It is clear that [REDACTED]'s claim that his mother was suffering a "beating" was an exaggeration, not only because [REDACTED] told the 911 Operator that there was no need for an ambulance to respond, but also because Desouza and Cifarelli both testified, and the DIR confirms, that [REDACTED] suffered no injury whatsoever. Since [REDACTED] exaggerated to the 911 Operator, I find that his hearsay statement cannot be relied upon to prove that the Respondent engaged in a physical altercation with [REDACTED].

The Respondent is found Not Guilty.

Respectfully submitted,



Robert W. Vinal

Assistant Deputy Commissioner - Trials

APPROVED
JUL 12 2010

RAYMOND W. KELLY
POLICE COMMISSIONER